

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

SM LINE CORPORATION,

RESPONDENT.

**JOINT STATUS REPORT AND
PROPOSED DISCOVERY SCHEDULE**

Pursuant to 46 C.F.R. §502.141(h) and Chief Administrative Law Judge Wirth’s October April 21, 2023 Initial Order, Complainant, Samsung Electronics America, Inc. (“SEA”) and Respondent, SM Line Corporation (“SM Line”) (collectively the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule.

Initial Disclosures. The Parties have made their Initial Disclosures.

CADRS. SM Line has contacted the Commission’s Office of Consumer Affairs and Dispute Resolution Services (CADRS) in regard to this matter. Mr. Philip Lee, CADRS mediator, has been assigned to handle the preliminary conference. SM's counsel met with Mr. Lee on May 23, 2023 to discuss a potential mediation between Parties. Mr. Lee will conduct an initial call with

counsel for SEA on the afternoon of May 25, 2023 to discuss a potential mediation between the Parties.

Discovery Schedule. The Parties submit the following proposed discovery schedule.

Event	Deadline
Service of Requests for Production and Fact Interrogatories	June 9, 2023
Complete Document Production	August 18, 2023
Complete Fact Depositions	September 29, 2023
Expert Discovery Begins	October 2, 2023
Close of All Discovery	October 9, 2023

In regard to the discovery schedule, the Parties provide separate observations:

(i) **SM Line**: SM Line will use every effort to complete all discoveries within 150 days, by October 9, 2023. However, considering the volume of issues and documents involved in this case, the Parties may not be able to complete the discovery in 150 days, in which case SM Line may seek the Presiding Officer's approval for an extension. In regard to a Joint Status Report date, a submission in and around August 11, 2023 is preferable.

(ii) **SEA**: SEA will use every effort to complete all discovery within 150 days, by October 9, 2023, to move the case forward as expeditiously as possible to recover reparations. As such, an extension should not be necessary. In regard to a Joint Status Report date, a submission at the completion of fact discovery, on September 29, 2023, is preferable.

Dated: May 25, 2023

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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